

EXHIBIT C

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
REMIGUS NWADIKE,Index No. 305260/2015
Date purchased: 12/16/15**SUPPLEMENTAL
SUMMONS**

Plaintiff,

-against-

Plaintiff designates
Bronx County as Place of
TrialTHE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. CHRISTOPHER
MCGRISKEN (SHIELD NO: 23173), P.O. "JOHN
DOE 1" (fictitious name meant to designate police
officer who permitted injury to Plaintiff), and
P.O. "JOHN DOE 2" (fictitious name meant to
designate police officer who permitted injury
to Plaintiff),The basis of venue is
location of incident -
Webster Avenue and
171st Street, Bronx, NYDefendants.
-----X

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York
March 4, 2019
RASKIN & KREMINS, L.L.P.By: **MICHAEL F. KREMINS, ESQ.**
Attorneys for Plaintiff
REMIGUS NWADIKE
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

TO: ZACHARY W. CARTER, ESQ.
CORPORATION COUNSEL
Attorney for Defendants
THE CITY OF NEW YORK
THE NEW YORK CITY POLICE DEPARTMENT
P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2"
100 Church Street
New York, New York 10007

POLICE OFFICER CHRISTOPHER MCGRISKEN
SHIELD NO. 23173
PATROL BORO BRONX
450 Cross Bronx Expressway
Bronx, New York 10457

POLICE OFFICER CHRISTOPHER MCGRISKEN
SHIELD NO. 23173
NYC POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

P.O. "JOHN DOE 1", P.O. "JOHN DOE 2"
(fictitious names meant to designate police
officers who permitted injury to Plaintiff
Patrol Boro Bronx
450 Cross Bronx Expressway
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
REMIGUS NWADIKE,

Plaintiff,

-against-

Index No.: 305260/2015

Date purchased: 12/16/15

**AMENDED
VERIFIED COMPLAINT**

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. CHRISTOPHER MCGRISKEN
SHIELD NO: 23173), "JOHN DOE 1"
(fictitious name meant to designate police officer
who permitted injury to Plaintiff) and "JOHN DOE 2"
(fictitious name meant to designate police officer
who permitted injury to Plaintiff),

Defendants.
-----X

Plaintiff, REMIGUS NWADIKE, by his attorneys, RASKIN & KREMINS, L.L.P.

complaining of Defendants, upon information and belief, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, Plaintiff, REMIGUS NWADIKE, was and is a resident of the County of Bronx, City and State of New York.

2. That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned, Defendant THE NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. That at all times hereinafter mentioned, Defendant, POLICE OFFICER CHRISTOPHER MCGRISKEN (SHIELD NO: 23173), (hereinafter P. O. MCGRISKEN), was employed by Defendant THE CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant, P.O. MCGRISKEN, was a employed by Defendant, THE NEW YORK CITY POLICE DEPARTMENT.

6. That at all times hereinafter mentioned, Defendants, P.O. "JOHN DOE 1" was employed by Defendant, THE CITY OF NEW YORK.

7. That at all times hereinafter mentioned, Defendants, P.O. "JOHN DOE 2" was employed by Defendant, THE CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendants, P.O. "JOHN DOE 1" was employed by Defendant, THE NEW YORK CITY POLICE DEPARTMENT.

9. That at all times hereinafter mentioned, Defendants, P.O. "JOHN DOE 2" was employed by Defendant, THE NEW YORK CITY POLICE DEPARTMENT.

10. That on the 21st day of August 2015, a Notice of Claim was duly served upon the Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT pursuant to Section 50-H of the General Municipal Law.

11. That on August 16, 2018, Plaintiff appeared for a 50-h hearing pursuant to New York General Municipal Law.

12. That more than thirty (30) days have elapsed since service of the aforesaid Notice of Claim and the claim has not been adjusted or paid and this action is commenced within one (1) year and ninety (90) days after the accrual of Plaintiff's cause of action.

13. That Plaintiff has complied with all conditions, precedent to the commencement of this action.

14. That Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, have neglected and/or refused to make adjustment or payment pursuant to Plaintiff's claim and less than one year and ninety (90) days have elapsed since the accrual of the cause of action herein set forth.

15. That at all times hereinafter mentioned, Defendant, P.O. CHRISTOPHER MCGRISKEN, was acting within the scope of his employment with Defendant, THE CITY OF NEW YORK, as a member of The New York City Police Department.

16. That at all times hereinafter mentioned, Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", were acting within the scope of their employment with Defendant, THE CITY OF NEW YORK, as members of The New York City Police Department.

17. That on or about August 2, 2015, at approximately between 11:00 p.m. and 12:00 a.m., Defendant, P.O. MCGRISKEN, came to be present at Webster Avenue between 170th Street and 171st Street, in the City and State of New York, County of Bronx, during the normal course of his employment with Defendant, THE CITY OF NEW YORK.

18. That on or about August 2, 2015, at approximately between 11:00 p.m. and 12:00 a.m., Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", came to be present at Webster Avenue between 170th Street and 171st Street, in the City and State of New York, County of Bronx, during the normal course of their employment with Defendant, THE CITY OF NEW YORK.

19. That on or about August 2, 2015, at approximately between 11:00 p.m. and 12:00 a.m., Plaintiff, REMIGUS NWADIKE, was lawfully at Webster Avenue between 170th Street and 171st Street, in the City and State of New York, County of Bronx.

20. That on or about August 2, 2015, at approximately between 11:00 p.m. and 12:00 a.m., at the aforesaid location, Plaintiff, REMIGUS NWADIKE, sustained severe and permanent personal injuries as a result of the wrongful, willful, reckless, careless and negligent acts of Defendants herein, their agents, servants and/or employees.

21. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendant P.O. MCGRISKEN, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2".

22. That the foregoing occurred solely and wholly as a result of the negligence of Defendants herein, their agents, servants and/or employees, and without any negligence on the part of Plaintiff REMIGUS NWADIKE contributing thereto.

23. That Defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees; in negligently and carelessly failing to direct their agents, servants and/or employees not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing Plaintiff REMIGUS NWADIKE to be subjected to assault and battery, traumatized, pushed, shoved, tackled, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force, in negligently and carelessly failing to adequately train police officers and/or other personnel for the public's safety, including Plaintiff REMIGUS NWADIKE; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

24. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "24" of the complaint herein with the same force and effect as if set forth herein at length.

26. That Defendant, P.O. MCGRISKEN, acting under the color of authority and without provocation, viciously and maliciously attacked Plaintiff, REMIGUS NWADIKE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

27. That Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously attacked Plaintiff, REMIGUS NWADIKE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

28. That Defendant, P.O. MCGRISKEN, acting under the color of authority and without provocation, viciously and maliciously assaulted Plaintiff, REMIGUS NWADIKE,

causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

29. That Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously assaulted Plaintiff, REMIGUS NWADIKE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

30. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendants P.O. MCGRISKEN, P.O. "JOHN DOE 1" and "JOHN DOE 2".

31. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "31" of the complaint herein with the same force and effect as if set forth herein at length.

33. That Defendant, P.O. MCGRISKEN, acting under the color of authority and without provocation, viciously and maliciously beat Plaintiff, REMIGUS NWADIKE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

34. That Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously beat Plaintiff, REMIGUS NWADIKE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

35. That Defendant, P.O. MCGRISKEN, acting under the color of authority and without provocation, viciously and maliciously battered Plaintiff, REMIGUS NWADIKE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

36. That Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously battered Plaintiff, REMIGUS NWADIKE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

37. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendants P.O. MCGRISKEN, P.O. "JOHN DOE 1" and "JOHN DOE 2".

38. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal,

emotional and psychological injuries that will continue for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "38" of the complaint herein with the same force and effect as if set forth herein at length.

40. That Defendant, P.O. CHRISTOPHER MCGRISKEN, acting under the color of authority and without provocation, viciously and maliciously falsely arrested Plaintiff, wrongfully depriving Plaintiff of his liberty.

41. That Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

42. That Defendant, THE CITY OF NEW YORK, by and through its employees, including, P.O. CHRISTOPHER MCGRISKEN, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", without provocation, viciously and maliciously falsely arrested Plaintiff, wrongfully depriving Plaintiff of his liberty.

43. That Defendant, P.O. CHRISTOPHER MCGRISKEN, without probable cause, falsely arrested Plaintiff.

44. That Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", without probable cause, falsely arrested Plaintiff.

45. That Defendant THE CITY OF NEW YORK, by and through its employees, including Defendant P.O. CHRISTOPHER MCGRISKEN, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", without probable cause, falsely arrested Plaintiff.

46. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendants P.O. CHRISTOPHER MCGRISKEN, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2".

47. That Plaintiff REMIGUS NWADIKE was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

48. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "48" of the complaint herein with the same force and effect as if set forth herein at length.

50. That Defendant, P.O. CHRISTOPHER MCGRISKEN, acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned Plaintiff, for approximately one (1) day, wrongfully depriving Plaintiff of his liberty.

51. That Defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned Plaintiff, for approximately one (1) day, wrongfully depriving Plaintiff of his liberty.

52. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendants P.O. CHRISTOPHER MCGRISKEN, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2".

53. That Plaintiff REMIGUS NWADIKE was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

54. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH OF ACTION

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "54" of the complaint herein with the same force and effect as if set forth

herein at length.

56. That the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff, wrongfully depriving Plaintiff of his liberty and due process of law.

57. That the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely compelled the plaintiff to appear in public and in court, wrongfully humiliating the plaintiff herein and depriving him of his liberty and due process of law.

58. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "58" of the complaint herein with the same force and effect as if set forth herein at length.

60. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE

NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. §1983.

61. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.

62. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "62" of the complaint herein with the same force and effect as if set forth herein at length.

64. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under

the law guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. §1983.

65. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's to equal protection under the law guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.

66. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION

67. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "66" of the complaint herein with the same force and effect as if set forth herein at length.

68. That by reason of the foregoing acts and/or omissions of Defendants in violation of the Fourteenth Amendment to the United States Constitution, Plaintiff REMIGUS NWADIKE has been forced to bring this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered

significant economic loss in the form of attorneys' fees.

69. That pursuant to 42 U.S.C. §1983, Plaintiff REMIGUS NWADIKE is entitled to reasonable attorneys' fees as part of costs.

AS AND FOR A TENTH CAUSE OF ACTION

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "69" of the complaint herein with the same force and effect as if set forth herein at length.

71. That at all times hereinafter mentioned, Defendants, without cause or justification, did intentionally inflict emotional distress upon Plaintiff REMIGUS NWADIKE causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

72. That at all times hereinafter mentioned, Defendants, without cause or justification, did negligently inflict emotional distress upon Plaintiff REMIGUS NWADIKE causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

73. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendant P.O. MCGRISKEN and defendants, P.O. "JOHN DOE 1" and P.O. "JOHN DOE 2".

74. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE, became sick, sore, lame and disabled; Plaintiff, REMIGUS NWADIKE, has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION AGAINST DEFENDANT P.O.
CHRISTOPHER MCGRISKEN**

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "74" of the complaint herein with the same force and effect as if set forth herein at length.

76. That on or about August 2, 2015, at approximately between 11:00 p.m. and 12:00 a.m., at the above-stated location, at Webster Avenue between 170th Street and 171st Street, in the City and State of New York, County of Bronx, Defendant, P.O. CHRISTOPHER MCGRISKEN, acting under the color of law, and without probable cause or provocation, viciously and maliciously assaulted, beat, forcibly pushed and tackled Plaintiff REMIGUS NWADIKE to the ground and used other excessive force in the course of an arrest when Defendant P.O. CHRISTOPHER MCGRISKEN falsely detained, searched, arrested, imprisoned, and confined Plaintiff, all of which deprived Plaintiff of his liberty.

77. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement and use of excessive force; and the arrest, imprisonment, confinement, and use of excessive force were not otherwise privileged or with just or probable cause.

78. That the aforesaid acts of Defendant, P.O. CHRISTOPHER MCGRISKEN, under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

79. That Defendant, P.O. CHRISTOPHER MCGRISKEN, under color of law, as an individual, violated 42 U.S.C. §1983.

80. That the aforesaid actions of Defendant, P.O. CHRISTOPHER MCGRISKEN, as an individual constituted an unreasonable use of excessive force, unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

81. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A TWELTH CAUSE OF ACTION AGAINST DEFENDANT P.O.
CHRISTOPHER MCGRISKEN**

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "81" of the complaint herein with the same force and effect as if set forth herein at length.

83. That on or about August 2, 2015, at approximately between 11:00 p.m. and 12:00 a.m., at the above-stated location, at Webster Avenue between 170th Street and 171st Street, in the City and State of New York, County of Bronx, Defendant, P.O. CHRISTOPHER MCGRISKEN, acting under the color of law, and without probable cause or provocation, viciously and maliciously falsely detained, searched, arrested, imprisoned, and confined Plaintiff, REMIGUS NWADIKE; that thereafter, Defendant, P.O. CHRISTOPHER MCGRISKEN did cause Plaintiff to be

transported from the aforesaid location to the local Precinct of the New York City Police Department, and continued to wrongfully confine, and imprison Plaintiff, all of which deprived Plaintiff of his liberty.

84. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement; and the arrest, imprisonment, and confinement were not otherwise privileged or with just or probable cause.

85. That the aforesaid acts of Defendant, P.O. CHRISTOPHER MCGRISKEN, under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

86. That Defendant, P.O. MCGRISKEN, under color of law, as an individual, violated 42 U.S.C. §1983.

87. That the aforesaid actions of Defendant, P.O. MCGRISKEN, as an individual constituted an unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

88. That by reason of the foregoing, Plaintiff REMIGUS NWADIKE became sick, sore, lame and disabled; Plaintiff REMIGUS NWADIKE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff REMIGUS NWADIKE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff REMIGUS NWADIKE was caused to suffer great

WHEREFORE, Plaintiff, REMIGUS NWADIKE, demands judgment against Defendants, THE CITY OF NEW YORK, P.O. MCGRISKEN, P.O. "JON DOE 1 and P.O. "JOHN DOE 2", in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, attorneys fees, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated: New York, New York
March 4, 2019

Yours, etc.

RASKIN & KREMINS, L.L.P.

By:  MICHAEL F. KREMINS, ESQ.
Attorneys for Plaintiff
REMIGUS NWADIKE
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

ATTORNEY'S VERIFICATION

MICHAEL F. KREMINS, ESQ., an attorney duly admitted to practice before all the Courts of the State of New York, hereby affirms the truth of the following under the penalties of perjury:

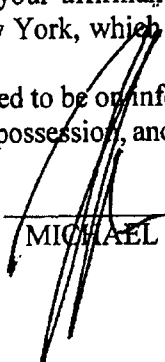
That I am associated with the law firm RASKIN & KREMINS, LLP, attorneys for Plaintiff herein.

That I have read the annexed AMENDED COMPLAINT and know the contents thereof and that the same is true to my own knowledge except as to those matters therein alleged to be made upon information and belief, and as to those matters, I believe them to be true.

That the reason why this verification is made by your affiant instead of Plaintiff is because Plaintiff does not reside within the County of New York, which is the County in which Raskin & Kremins, LLP maintains its office.

That the grounds for my belief as to all matters alleged to be on information and belief, are statements of said Plaintiff, papers and records in Plaintiff's possession, and a general investigation of the facts of this case.

Dated: New York, New York
March 4, 2019



MICHAEL F. KREMINS, ESQ.

Index Number: 305260/2015

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

REMIGUS NWADIKE,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
P.O. "JOHN DOE 1" (fictitious name meant to designate police officer who permitted
injury to plaintiff), P.O. "JOHN DOE 2" (fictitious name meant to designate police officer
who permitted injury to plaintiff), P.O. "JOHN DOE 3" (fictitious name meant to designate
police officer who permitted injury to plaintiff),

Defendants.

SUPPLEMENTAL SUMMONS AND AMENDED VERIFIED COMPLAINT

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk
within named Court on August 5, 2019.

NOTICE OF
SETTLEMENT

☐ that an Order of which the within is a true copy will be presented to the Hon.
the judges of within named Court, at , on

Dated: New York, New York

Yours, etc.,

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff(s)
160 Broadway-4th Floor
New York, NY 10038
(212) 587-3434